

ALABAMA DEPARTMENT OF REVENUE
ADMINISTRATIVE CODE

CHAPTER 810-3-2
PERSONS AND SUBJECTS GENERALLY SUBJECT TO TAX

810-3-2-.03 Estates, Trusts And Fiduciaries Subject To Alabama
Income Tax.

(1) Every individual or corporation acting in a fiduciary capacity, receiving income from sources within the State of Alabama, is subject to the Alabama income tax with respect to such income. For definitions of resident individuals and resident corporations, see Rules 810-3-2-.01 and 810-3-2-.02.

(2) An estate or trust resident in the State of Alabama, or having a resident fiduciary, is subject to the Alabama income tax. An estate or trust having income from sources within the State is subject to tax on such income.

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Statutory Authority: Code of Ala. 1975, §§40-2A-7(a)(5), 40-18-2.

History: Amended: June 17, 1988; filed July 27, 1988. **Amended:** Filed September 18, 1996; effective October 23, 1996. **Amended:** Filed April 14, 2017; effective May 29, 2017.